

LEGISLATURE OF NEBRASKA
ONE HUNDRED NINTH LEGISLATURE
SECOND SESSION

LEGISLATIVE BILL 1176

Introduced by DeBoer, 10.

Read first time January 21, 2026

Committee:

- 1 A BILL FOR AN ACT relating to motor vehicles; to amend section 60-3202,
- 2 Reissue Revised Statutes of Nebraska, and sections 60-601 and
- 3 60-605, Revised Statutes Supplement, 2025; to provide for
- 4 enforcement of the maximum lawful speed limit for highway work zones
- 5 by means of a speed control enforcement system and to define terms
- 6 under the Nebraska Rules of the Road; to redefine automatic license
- 7 plate reader system under the Automatic License Plate Reader Privacy
- 8 Act; and to repeal the original sections.
- 9 Be it enacted by the people of the State of Nebraska,

1 **Section 1.** Section 60-601, Revised Statutes Supplement, 2025, is
2 amended to read:

3 60-601 Sections 60-601 to 60-6,383 and sections 3 to 5 of this act
4 shall be known and may be cited as the Nebraska Rules of the Road.

5 **Sec. 2.** Section 60-605, Revised Statutes Supplement, 2025, is
6 amended to read:

7 60-605 For purposes of the Nebraska Rules of the Road, the
8 definitions found in sections 60-606 to 60-676.01 and sections 3 and 4 of
9 this act shall be used.

10 **Sec. 3.** Highway work zone means a maintenance, repair, or
11 construction zone described in section 60-6,188.

12 **Sec. 4.** Speed control enforcement system means any photographic
13 device, radar device, laser device, or other electrical or mechanical
14 device that is designed to:

15 (1) Detect and record the speed of a vehicle; and

16 (2) Obtain a clear photograph or other recorded image of the rear
17 license plate of a vehicle when the speed of such vehicle exceeds the
18 maximum lawful speed limit.

19 **Sec. 5.** (1) If there is any worker present in a highway work zone,
20 the maximum lawful speed limit for such highway work zone may be enforced
21 by means of a speed control enforcement system if:

22 (a) Signage is displayed at the entry to such highway work zone and
23 such signage provides notice that a speed control enforcement system is
24 or may be in use; and

25 (b) A law enforcement officer is present in or near the highway work
26 zone in a vehicle that clearly displays official identification that
27 indicates that the vehicle is used for law enforcement purposes. Such
28 identification may include emergency lights or the logo, name, or
29 insignia of a law enforcement agency on the exterior of the vehicle.

30 (2) A speed control enforcement system operating in a highway work
31 zone shall not record the speed of a vehicle or an image of a vehicle or

1 its license plate unless the speed of the vehicle detected by the speed
2 control enforcement system exceeds eleven miles per hour over the maximum
3 lawful speed limit.

4 **Sec. 6.** Section 60-3202, Reissue Revised Statutes of Nebraska, is
5 amended to read:

6 60-3202 For purposes of the Automatic License Plate Reader Privacy
7 Act:

8 (1) Alert means data held by the Department of Motor Vehicles, each
9 criminal justice information system maintained in this state, the Federal
10 Bureau of Investigation National Crime Information Center, the Federal
11 Bureau of Investigation Kidnappings and Missing Persons list, the Missing
12 Persons Information Clearinghouse established under section 29-214.01,
13 and license plate numbers that have been manually entered into the
14 automatic license plate reader system upon a law enforcement officer's
15 determination that the vehicles or individuals associated with the
16 license plate numbers are relevant and material to an ongoing criminal or
17 missing persons investigation;

18 (2)(a) {2} Automatic license plate reader system means one or more
19 mobile or fixed automated high-speed cameras used in combination with
20 computer algorithms to convert images of license plates into computer-
21 readable data. ÷

22 (b) Automatic license plate reader system does not include a speed
23 control enforcement system as defined in section 4 of this act that is
24 operated under the Nebraska Rules of the Road;

25 (3) Captured plate data means global positioning system coordinates,
26 date and time information, photographs, license plate numbers, and any
27 other data captured by or derived from any automatic license plate reader
28 system;

29 (4) Governmental entity means a department or agency of this state,
30 the federal government, another state, or a political subdivision or an
31 individual acting for or as an agent of any of such entities; and

1 (5) Secured area means a place, enclosed by clear boundaries, to
2 which access is limited and not open to the public and into which entry
3 is only obtainable through specific access-control points.

4 **Sec. 7.** Original section 60-3202, Reissue Revised Statutes of
5 Nebraska, and sections 60-601 and 60-605, Revised Statutes Supplement,
6 2025, are repealed.